

speeded, or to get the bill dismissed, as the circumstances may seem to justify. The Plaintiff can, in most cases, only obtain time on payment of costs.

It is only the reasonable construction of the Orders to hold, that the defendant may move to dismiss one month after his own answer; and the reason for such construction is stronger here than in England; for, it being no longer in the plaintiff's power to compel an answer, but other means of proceeding being open to him to proceed with the cause, it would be unfair, were it in his power to reply conclusively to the motion of one defendant to dismiss, that another defendant has not yet answered, or has not answered a month ago.

Reasonable construction of the Order.

An Order to amend, obtained after notice to dismiss is given, has been in England held to be, without any special circumstances against it, a sufficient answer to the motion. But after such notice no Order to amend can be obtained in England, *as of course*, under an Order of April 1847, which has not been adopted here. Under the 12th Order of 1850, an Order of course to amend can be obtained, if no Order of course to amend has already been taken, at any time within a month after the "*last of several answers*" has been filed, here meaning, the last of any answer of any defendant, (see *Arnold vs. Arnold*, 1 Phillips 805; decided before the Order of April 1847 was published). Then supposing a defendant A. to answer, and a month elapse, it seems he might give a notice of motion to dismiss, although B. has not answered. After the notice B. might answer, and the plaintiff might immediately take an Order to amend; but that would not necessarily form a conclusive answer to the motion, but the Court would probably grant time. The same might be the case, when B. had answered, but a month had not elapsed before the motion of A., and the plaintiff took his Order to amend. We have said such an Order would not form a conclusive answer to the motion; but it would no doubt have an effect upon the Order which the Court would make. The defendant would seem to have been

Question of Order to amend being an answer to a motion to dismiss.